

Level 1

Duty of Care

Register intent to carry out preparatory work (s. 48). At least 1 month prior to start of works (Act)

Level 2

Director Recommendation (s. 50)

OR

Referred to Council (s. 50)

No EIA

Council recommendation

Referred to Minister (s. 50)

OR

EIA

Level 3

Inception Report returned for amendment

Inception Report rejected

OR

Inception Report approved

Prepare EIS (s. 53)

Submit EIS

Director of DEC serves a notice to undertake EIA (s. 49)

Submission of Inception Report (s. 52)

Director considers Inception Report (s. 52)

Response from Director within 60 days?

NO

ASSESSMENT (s.54)

Director notifies proponent or time needed to assess EIS (s. 54(2)) within 30 days

Director may notify proponent of extensions to assessment period (s.54(3))

Director's options during assessment (s.54(4)) (and/or)

Director shall refer EIS to any Provincial Environment Committee (s.54(5))

- More Information
- Conference of interested persons
- Referral to Consultative Group
- Public enquiry
- Any other option

PUBLIC REVIEW AND SUBMISSIONS (s.55)

Director notifies proponent of time needed for review (s.55(1)(b))

Director may require proponent to make public presentation (s. 55(1)(c))

Director may require proponent to submit program of public review (s.55(3))

Referral to Council (s. 57)

Council recommendation within 90 days (s. 57(1))

Council recommends resubmission to proponent (s. 57(1) (b))

OR

Council recommends approval to Minister (s. 57(1) (a))

Minister grants approval in Principle (s. 59)

Proponent applies for Permit (s. 60)

Director accepts EIS (s. 56)

OR

Director rejects EIS or there is no response from Director within period notified under s. 54 (2)

Decision appealed under s. 68

